

10. 9:00 AM CASE NUMBER: C24-00892

CASE NAME: LAXMI CAPITAL, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MARGARET MURPHY

FOR CHARGING ORDER AGAINST DEBTOR MARGARET MARIE MURPHY'S INTEREST IN MJD DEVELOPMENT, LLC - CONTINUED FROM 4/9/25 DUE TO JUDGE'S UNAVAILABILITY. CONTINUED BY STIPULATED AGREEMENT FROM 10/29/25 TO 1/14/25.

FILED BY: LAXMI CAPITAL, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The hearing on this motion is continued by stipulation to September 23, 2026 at 9:00 a.m. in Dept. 16. No appearance is required on September 9, 2026.

11. 9:00 AM CASE NUMBER: C24-01760

CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION

FILED BY DEFENDANT/CROSS-COMPLAINANT, SUMMER LAKE OWNERS

FILED BY: SUMMER LAKE OWNERS ASSOCIATION

TENTATIVE RULING:

Before the Court is Defendant Summer Lake Owners Association ("Defendant" or "Summer Lake")'s motion for summary judgment or in the alternative summary adjudication. The Motion is directed toward Plaintiff ACD-TI Oakley, LLC ("Plaintiff" or "ACD")'s Complaint for Nuisance, Trespass, and Contribution.

For the following reasons, the motion for summary judgment is **granted**.

Legal Standard on Summary Judgment

A motion for summary judgment is properly granted only when "all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) A defendant may bring a motion on the ground the plaintiff cannot prove one of the required elements of the case or there is a complete defense to the action. (Code Civ. Proc. § 437c, subds. (o)(1), (2) & (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.)

To carry its initial burden when the motion is directed to the plaintiff's case rather than an affirmative defense, the defendant must present evidence that either negates an element of the plaintiff's cause of action or shows that the plaintiff does not possess, and cannot reasonably obtain, evidence necessary to establish at least one element of the cause of action. (*Aguilar*, supra, 25 Cal.4th at pp. 853-854.) Only after the defendant carries that initial burden does the burden shift to the plaintiff "to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc. § 437c, subd. (p)(2).)

Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Brief Factual Background

Plaintiff purchased the undeveloped Subject Property from Bethel Island LLC in December 2018 for

the purpose of developing a residential real estate project. (Complaint at ¶ 6.) Defendant Shea Homes Limited Partnership developed the Summer Lake South Subdivision adjacent to the Subject Property and is the predecessor of Defendant Summer Lake Owners Association. (Complaint at ¶¶ 3, 4.) The Complaint alleges that in the Summer Lake South subdivision there is a lake water feature that collects flood and stormwater runoff from that subdivision and discharges those waters onto the Subject Property. (*Id.* at ¶ 12.) Specifically at issue in this case is an “Outfall Structure” and associated rip-rap which Plaintiff alleges “collects stormwater from the Defendant HOA’s Lake feature and directs that stormwater via the lake water discharge pipes to the Ditch that exists solely upon the Subject Property which is owned by Plaintiff.” (*Id.* at ¶ 14.)

Plaintiff also alleges in its Complaint that “[i]n order to complete the residential project on the Subject Property, the Plaintiff is required to design a drainage system that complies with the overall drainage plan for the City of Oakley. The drainage plan requires either a new in-tract pump station along with an upgrade to the existing Pump Station #4, or a more substantial or complete replacement of the existing Pump Station #4.” By its Complaint, Plaintiff seeks removal of the Outfall Structure and associated rip-rap or alternatively a determination that Defendants “are equitably required to contribute to the \$5.5 million dollar cost to upgrade Pump Station #4[.]” (Prayer at ¶¶ 1-2.)

Analysis

Actual Harm

First, Defendant argues that both Plaintiff’s causes of action for trespass and nuisance have no merit because Plaintiff has not sustained actual harm, only prospective damage based on the cost to upgrade Pump Station #4. In opposition, Plaintiff argues that its “real property has diminished in value due to Summer Lakes stormwater discharge” and “[i]t has suffered delay damages, loss of use, and must incur substantial cost to upgrade Pump Station #4 from which Summer Lake will benefit.” (Opp. at 18:9-11.)

Plaintiff does not have admissible evidence of “diminution in value.” (See Evidentiary Objections, below.) Even if it did, under California law, damages for diminution in value may only be recovered for permanent, not continuing, nuisances. (*Santa Fe Partnership v. ARCO Products Co.* (1996) 46 Cal.App.4th 967, 977–978; see also *Capogeannis v. Superior Court* (1993) 12 Cal. App. 4th 668, 679 [recovery of future damages would be inconsistent with a theory of continuing nuisance]; *Alexander v. McKnight* (1992) 7 Cal. App. 4th 973, 978 [equitable relief ordering abatement plus an award of damages for future harm would unjustly enrich the plaintiffs]; *Mozzetti v. City of Brisbane* (1977) 67 Cal. App. 3d 565, 575-576 [instruction on damages improperly allowed plaintiffs to receive damages for both the cost of remediation and the decrease in property value]; *Rhodes v. San Mateo Investment Co.* (1955) 130 Cal. App. 2d 116, 118 [damages for depreciation in market value could not be allowed where court had issued injunction ordering the defendant to abate the nuisance]. And, whether calculated from the date outfall structure was completed or the date the Plaintiff purchased the Subject Property, the three-year limitations period for bringing a permanent nuisance claim under CCP § 338 has expired.

While loss of use is a recognized measure of continuing nuisance damages (*Santa Fe Partnership v. ARCO Products Co.* (1996) 46 Cal.App.4th 967, 980), Plaintiff has not adduced any admissible evidence in support of non-speculative loss of use damages either. (See Evidentiary Objections, below.) The same is true with respect to Plaintiff’s “delay damages.” Plaintiff must prove, as part of its burden to establish the elements of nuisance and trespass, that it had a viable residential real estate project

which could have proceeded but for Defendant's conduct. It has not done so.

Because the Court concludes that Plaintiff cannot establish damages, an essential element of its claims for nuisance and trespass, it need not reach Defendant's additional arguments that the nuisance is permanent or that it has a prescriptive easement to drain flood and stormwater across Plaintiff's property.

Contribution

Defendant moves for summary judgment on Plaintiff's claim for contribution on the grounds that it has not yet accrued, as Plaintiff has not paid any money to upgrade Pump Station #4. In opposition, Plaintiff argues that "ACD-TI's contribution claim aligns with the intent of the Subdivision Map Act that compels reimbursement by parties that benefit from infrastructure upgrades such as Summer Lake." (Opp. at 24:6-8.) Plaintiff further argues that "the principles of equity require Summer Lake to contribute its fair share of the cost to upgrade Pump Station #4 as Summer Lake stands to substantially benefit from any upgrade." (*Id.* at 24:19-21.) The only authority cited by Plaintiff is *Pacific Legal Foundation v. California Coastal Com.* (1982) 33 Cal. 3d 158, 171-172.

Pacific Legal Foundation explains the principles of ripeness in the context of a challenge to general access policies of the Coastal Commission. Specifically, *Pacific Legal* concluded that a facial challenge to general access policies of the Coastal Commission was not ripe to review because plaintiffs were essentially inviting court to speculate about the type of developments upon which access conditions may be imposed.

Contribution is a creature of statute, specifically Code of Civil Procedure section 875, which provides:

- (a) Where a money judgment has been rendered jointly against two or more defendants in a tort action there shall be a right of contribution among them as hereinafter provided.
- (b) Such right of contribution shall be administered in accordance with the principles of equity.
- (c) Such right of contribution may be enforced only after one tortfeasor has, by payment, discharged the joint judgment or has paid more than his pro rata share thereof. It shall be limited to the excess so paid over the pro rata share of the person so paying and in no event shall any tortfeasor be compelled to make contribution beyond his own pro rata share of the entire judgment.
- (d) There shall be no right of contribution in favor of any tortfeasor who has intentionally injured the injured person.
- (e) A liability insurer who by payment has discharged the liability of a tortfeasor judgment debtor shall be subrogated to his right of contribution.
- (f) This title shall not impair any right of indemnity under existing law, and where one tortfeasor judgment debtor is entitled to indemnity from another there shall be no right of contribution between them.
- (g) This title shall not impair the right of a plaintiff to satisfy a judgment in full as against any tortfeasor judgment debtor.

(Code Civ. Proc. § 875.)

Contribution requires a showing that one of several joint tortfeasor judgment debtors has paid more than a pro rata share of a judgment. Here, there is none. Plaintiff's argument that "the principles of equity require Summer Lake to contribute its fair share of the cost to upgrade Pump Station #4 as Summer Lake stands to substantially benefit from any upgrade" (Opp. at 24:19-21) lacks merit. This argument depends on the meaning of contribution in the lay sense, not as defined in CCP § 875. Defendant is entitled to summary judgment on Plaintiff's claim for contribution.

Evidentiary Objections

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Defendant's Objections to the Declaration of Eric Risberg:

Objection 1. Sustained.

Objection 2. Sustained.

Objection 3. Sustained.

Objection 4. Sustained.

Objection 5. Sustained.

Defendant's Objections to the Declaration of Ziad Ghandour:

Objection 9. Sustained.

Defendant's Objection to Exhibit 25: Sustained.

12. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
FILED BY CROSS-DEFENDANT RECLAMATION DISTRICT 799
FILED BY:

TENTATIVE RULING:

This Motion is vacated. Cross-Defendant Reclamation District 799's Judgment was entered on July 14, 2026. No appearance is required for this motion on September 9, 2026.

13. 9:00 AM CASE NUMBER: C24-02288
CASE NAME: ELSA BAUTISTA VS. DIANNE ADAIR DAY CARE CENTERS
PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
FILED BY: BAUTISTA, ELSA

TENTATIVE RULING:

Summary

Plaintiff Elsa Bautista ("Plaintiff") seeks preliminary approval of a proposed wage and hour class action and PAGA settlement with Defendant Dianne Adair Day Care Centers ("Defendant"). Plaintiff